

K.Sagunthala vs A.Kaliamoorthy on 17 February, 2021

Author: S.M.Subramaniam

Bench: S.M.Subramaniam

C.M.A.No

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED : 17.02.2021

CORAM

THE HONOURABLE MR.JUSTICE S.M.SUBRAMANIAM

C.M.A.No.302 of 2021

and

C.M.P.Nos.2043 & 2046 of 2021

K.Sagunthala

..Appe

Vs.

A.Kaliamoorthy

..Respo

Prayer : Civil Miscellaneous Appeal filed under Section 28 of Hindu Marriage Act, against the Fair and Decretal order passed in M.O.P.No.22 of 2005 dated 12.07.2007 passed on the file of the Additional District Judge, Puducherry at Karaikal.

For Appellant : Mr.S.Srinivasan

For Respondent : Mr.Vasudevan

For M/s.T.Susindran

JUDGMENT

The marriage between the appellant and the respondent was solemnized on 29.04.1984 as per the Hindu Rites and Customs.

2. The respondent/husband filed a petition under Section 13(1)(ib) of the Hindu Marriage Act, seeking Dissolution of Marriage on the ground that from the beginning, the appellant/wife was not co-operating <https://www.mhc.tn.gov.in/judis/> with the respondent/husband in the matrimonial life. The respondent in his petition has stated that both of them were not living happily and after the year 1986, the appellant/wife refused to live with the respondent/husband. Thus, the respondent/husband filed a petition for divorce on the ground of cruelty and desertion.

3. The Additional District Court, Karaikal, adjudicated the issues with reference to the documents and evidences. The trial Court considered the fact that the appellant/wife adamantly refused to live with the respondent/husband and left the respondent/husband with the children and permanently

stayed in the residence of her parents at Viswanathapuram, Vizhidiyur. The allegations regarding the desertion was also considered by the trial Court. Though the appellant/wife has raised a ground that the respondent/husband was having an illicit relationship with another lady during the year 1989, the said allegation of adultery had not been established. Further, no such adultera has been impleaded in the proceedings. As per the evidence available, the trial Court found that the appellant/wife was living with the respondent/husband till the year 1986. The appellant/wife lived with the respondent/husband only for about 3 years and thereafter, she refused to <https://www.mhc.tn.gov.in/judis/> live with the respondent/husband. She at her own volition, went to her parents house and had taking her two children. When the appellant/wife adamantly refused to live with the respondent/husband and further, the respondent/husband was established that he was regularly sent money order to the address of her father's residence and those money order receipts were also filed as documents before the trial Court, the Trial Court arrived a conclusion that the appellant/wife deserted the respondent/husband and therefore, he is entitled for the relief of dissolution of marriage.

4. The learned counsel appearing on behalf of the respondent/husband brought to the notice of this Court that the divorce was granted on 12.07.2007 and thereafter, the respondent/husband got remarried. However, the respondent/husband is remitting the maintenance amount punctually and this being the submission made, this Court is of the considered opinion that the marriage between the appellant and the respondent became irretrievably broken down and decree of divorce was granted in the year 2007 by the trial Court and already 13 years lapsed and in between the respondent/husband got re- married.

<https://www.mhc.tn.gov.in/judis/> S.M.SUBRAMANIAM, J.

kak

5. This being the factum, the appellant/wife is not entitled for the relief as such sought for and accordingly, the Fair and Decreetal order dated 12.07.2007 passed in M.O.P.No.22 of 2005 stands confirmed and the Civil Miscellaneous Appeal in C.M.A.No.302 of 2021 stands dismissed. No costs. Consequently, connected miscellaneous petitions are closed.

17.02.2021 kak Index: Yes/No Internet:Yes/No Speaking/Non-Speaking order To The Additional District Judge, Puducherry at Karaikal.

<https://www.mhc.tn.gov.in/judis/>